

INSERT CLUB TENNIS NAME HERE

RULES OF THE CLUB IN ACCORDANCE WITH THE ASSOCIATIONS INCORPORATION REFORM ACT 2012

1. Name

Insert club tennis name here

The name of the incorporated association is (in these Rules called "the Club").

2. Definitions

1) In these Rules, unless the contrary intention appears:

"Act" means the Associations Incorporation Reform Act 2012 and includes any regulations made under that Act

"committee" means the committee of management of the Club.

"financial year" means the year ending on 30 April.

"general meeting" means a general meeting of members convened in accordance with Rule 31.

"member" means a member of the Club.

"ordinary member of the committee" means a member of the committee who is not an officer of the Club under Rule 6;

"public officer" of the Club is the secretary

"Regulations" means regulations under the Act.

"relevant documents" has the same meaning as in the Act.

"By-laws" means any By-laws made pursuant to the provision of these Rules.

2) In these Rules, a reference to the Secretary of a Club is a reference to:

a) if a person holds office under these Rules as Secretary of the Club, to that person

b) in any other case, to the Public Officer of the Club.

"Special resolution of members" is a resolution that is passed if not less than three quarters of the members voting at a general meeting (whether in person or by proxy) vote in favour of the resolution.

3. Alteration of the rules

These rules and the statement of purposes of the Club may only be altered by a special resolution at either a special general meeting or an annual general meeting of the Club.

4. Statement of Purposes

1) To provide for the playing and general advancement of the game of tennis.

2) To provide for the playing of tennis or any other athletic games the General Committee may decide



3) To provide and maintain from the funds of the Club, facilities and accommodation for members and their guests upon the premises.

5. Committee of Management

- 1) The affairs of the Club shall be managed by the committee of management.
- 2) The committee:
 - a) shall control and manage the business and affairs of the Club and its decisions shall be binding on all members.
 - b) may, subject to these Rules, the Act and the Regulations, exercise all such powers and functions as may be exercised by the Club other than those powers and functions that are required by these Rules to be exercised by general meetings of the members of the Club.
 - c) subject to these Rules, the Act and the Regulations, has power to perform all such acts and things as appear to the committee to be essential for the proper management of the business and affairs of the Club.
 - d) shall have the power to borrow money in order to provide funds for the general running of the Club or for capital works.
 - e) may appoint sub committees, consisting of any members of the Club with such powers as they deem expedient for carrying out the objectives of the Club.
 - f) have jurisdiction over all committees and sub committees of the Club.
 - g) have the power to frame By-laws consistent with these Rules of the Club, for the general management of the Club and conduct of its members, and to alter, amend or rescind such Bylaws.
 - h) a member is eligible to be elected or appointed as a committee member if the member is 18 years or over and is entitled to vote at a general meeting.
- 3) The Committee shall consist of:
 - a) the officers of the Club as per Clause 6
 - b) up to six ordinary members – the number to be determined at the Annual General Meeting (AGM) and these persons elected at the AGM may also be elected at the AGM to hold some of the Positions as set out in Clause 17, otherwise the Committee will determine the Positions held by these members of the Committee.

Each of whom in (a) and (b) above shall be elected at the annual general meeting of the Club in each year.

In addition a mid week ladies representative who would be nominated as an ordinary member by the mid week ladies members prior to the Annual General Meeting and who then automatically becomes a member of the Committee.

6. Office holders

- 1) The officers of the Club shall be:
 - a) President

- b) Vice-President
- c) Treasurer
- d) Secretary (also called Public Officer under the Act)
- e) Membership Secretary
- f) Club Coach

2) Each officer of the Club shall hold office until the annual general meeting next after the date of his or her election but is eligible for re-election.

3) In the event of a casual vacancy in any office referred to in sub-rule (1) above or in Section 17, the committee may appoint one of its Committee members or any other eligible member of the Club to the vacant office and the member appointed may continue in office up to and including the conclusion of the annual general meeting next following the date of the appointment.

7. Ordinary Members of the Committee

1) Each ordinary member of the committee shall hold office until the annual general meeting next after the date of election but is eligible for re-election.

2) In the event of a casual vacancy occurring in the office of any member of the committee, the committee may appoint a member of the Club to fill the vacancy and the member appointed shall hold office, subject to these Rules, until the conclusion of the annual general meeting next following the date of the appointment.

8. Election of Officers and Ordinary Committee Members

1) Nominations of candidates for election as officers of the Club or as ordinary members of the committee must be:

- a) made in writing, signed by two members of the Club and accompanied by the written consent of the candidate (which may be endorsed on the form of nomination) and
- b) delivered to the Secretary of the Club prior to the time for the holding of the annual general meeting.

2) A candidate may only be nominated for one office, or as an ordinary member of the committee, prior to the annual general meeting.

3) If insufficient nominations are received to fill all vacancies on the committee, the candidates nominated shall be deemed to be elected and further nominations may be received at the annual general meeting.

4) If the number of nominations received is equal to the number of vacancies to be filled the persons nominated shall be deemed to be elected.

5) If the number of nominations exceeds the number of vacancies to be filled a ballot must be held.

6) The ballot for the election of officers and ordinary members of the committee must be conducted by secret ballot at the annual general meeting in such manner as the committee may direct. The Returning Officer must not be a member nominated for a position that is the subject of the vote.

7) Each Committee member must:

- a) become familiar with these Rules,
- b) exercise their powers and discharge their duties in good faith in the best interests of the Club and for a proper